



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 14, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201901734 regarding Police Officer Vincent Mauro, Tax No. [REDACTED] (DADS No. 2019-20870) and Police Officer Jorge Flores, Tax No. [REDACTED] (DADS No. 2019-20869)

Dear Mr. Darche:

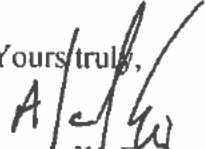
The Police Commissioner has reviewed the facts and circumstances of this matter, including the Body-Worn Camera footage, and has determined that Police Officer Mauro and Police Officer Flores each receive Training from the Police Academy.

Contrary to the penalty proposed by the CCRB, the above penalty more accurately addresses the level of misconduct alleged in this case. Specifically, none of the alleged misconduct warrants the issuance of a Schedule A Command Discipline to either of the officers.

Instead, given the totality of the circumstances, the Police Commissioner has determined that while the officers' actions were improper, training is a more appropriate tool to prevent such misconduct in the future. Therefore, the Police Commissioner has directed that both Police Officers receive training from the Police Academy to address their respective misconduct in this case.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


James W. Essig
Assistant Chief
Commanding Officer
Police Commissioner's Office

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